

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

DOLLAR GENERAL LOGISTICS, LLC, *Complainant*

v.

YANG MING MARINE TRANSPORT CORP., *Respondent*.

DOCKET NO. 25-12

Served: June 18, 2026

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

ORDER HOLDING MOTION TO FILE AMENDED COMPLAINT IN ABEYANCE

On May 28, 2026, Complainant filed a motion for permission to file an amended complaint, and both parties jointly filed a motion to extend deadlines, despite the current schedule closing discovery on May 22, 2026, six days before the consolidated motions. *See* Second Amended Scheduling Order (“Second Amended Schedule”) (issued January 21, 2026). The parties have previously filed motions to extend after deadlines have passed and/or sought excessive extensions of time which were denied. Now, after all discovery deadlines have passed, Complainant seeks to file an amended complaint to add three new allegations and reopen discovery¹ to include filing another expert report, then rebuttal report, and further expert depositions regarding those experts’ lost profit analyses, as well as a three-month extension of the initial briefing deadline, totaling over six months beyond the current deadlines. Currently, Complainant’s brief is due June 22, 2026, less than a month after its motion was filed.

In the Second Amended Schedule I cautioned the parties that further extensions of time were unlikely to be granted. Second Amended Schedule at 3 (“Motions to further enlarge the discovery period are highly unlikely to be granted, and rather than seek to do so, the parties should work to narrow the issues, confer on stipulations of fact, and consider ways to work within the existing deadlines.”). Complainant asserts that it learned the facts underlying the new allegations during document production and witness depositions. Complainant does not explain the timeline of learning this information, and based on the schedule, depositions of fact witnesses should have concluded on April 17, 2026. Because the parties failed to follow the schedule, it is unclear when Complainant learned the facts on which it bases its proposed new allegations to the complaint (*See* Motion for Permission to File Proposed Verified Amended Complaint at 10,

¹ Despite the Second Amended Scheduling Order establishing May 22, 2026, as the deadline for completing expert depositions and closing discovery, Complainant indicates that as of the May 28, 2026, motion: “[d]ue to scheduling constraints, the parties currently are completing expert depositions. In addition, Complainant is reviewing a supplemental document production made by Respondent on May 25, 2026.” Second Amended Scheduling Order at 3. The parties failed to seek an extension of the scheduling order as required by the Commissions Rules and as stated in the Initial Order: “Parties may agree to additional limitations, however, requests to extend established deadlines will be reviewed for good cause even if parties agree to the extension.” Initial Order at 3.

indicating that this knowledge was obtained through fact depositions and translation of documents at a time not specified). In addition to adding three allegations, Complainant seeks permission to prepare an expert report on lost profits for the year following the service contract alleged as the basis for the complaint. It cites to a decision that issued in 2024 as support for the lost profit analysis it seeks to add at this late date. Motion For Permission to File Proposed Verified Amended Complaint at 7. Finally, Complainant seeks to conform the complaint to the facts it has learned through discovery. *Id.* at 7-8. Complainant cites to no cases—FMC or otherwise—supporting the filing of an amended complaint adding new causes of action after the completion of discovery and less than a month prior to initial briefing.

On June 4, 2026, Respondent filed an opposition to Complainant's motion to file an amended complaint, but jointly seeks to belatedly extend the schedule. *See* Respondent's Memorandum of Law in Opposition to Motion for Leave to Amend Complaint and in Support of Motion to Extend Deadlines ("R Opp"). Respondent cites to two FMC cases in support of its position that permission to file an amended complaint should not be granted: *Seafair USA LLC v. Sterling Container Line Ltd. and Atlantic Forwarding Ltd.*, Dkt. No. 22-34, 2023 WL 4418617 (ALJ Jul. 6, 2023) (Order on Motion to Amend the Complaint and the Scheduling Order), and *20230930-DK-Butterfly-1, Inc. f/k/a Bed, Bath & Beyond Inc. v. Orient Overseas Container Line Limited and OOCL (Europe) Limited*, Dkt. No. 23-02, 2024 WL 5054943 (ALJ Dec. 5, 2024) (Order Denying Complainant's Second Motion to Amend the Complaint). While these cases differ factually from this one regarding why complainants sought to amend their complaints late in the discovery or shortly before the briefing schedule, both discuss cases in which motions to amend a complaint were made very late in discovery, and what courts consider in deciding whether to allow such late amendments.

Respondent filed its partial opposition to Complainant's May 28, 2026, motion in a timely manner on June 4, 2026, two weeks ago. This motion has now become urgent for resolution because it was filed after discovery was scheduled to be completed, and less than one month before Complainant's initial brief was due. Because Complainant did not adequately explain when it discovered this new information that it asserts warrants reopening discovery to allow for more expert reports and analyses and delaying the proceeding for at least five months, and because it did not provide any authority in support of such a late amendment, further consideration is necessary. Accordingly, it is **ORDERED** that the motion is held in abeyance to allow a status conference in which Complainant can further explain why it filed this motion after discovery was completed, and what case authority supports such amendment. Regardless of the outcome of the motion following the status conference, briefing will be delayed. I will order a new briefing schedule when I decide this motion. Accordingly, the briefing schedule of the Second Amended Scheduling Order is **POSTPONED**. The parties will receive a Teams invitation to the status conference by early next week.



Linda S. Harris Crovella
Administrative Law Judge